Mohd. Irfan & Ors vs State Of Gnctd Through Sho Ps Bara Hindu ... on 25 September, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 6935/2025 & CRL.M.As. 29136-29137/2025
MOHD. IRFAN & ORS.
Through: Mr
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versus

STATE OF GNCTD THROUGH SHO PS BARA HINDU RAO &
ANR. .....Resp
Through: Mr. Amit Ahlawat, APP for Stat
SI Kavindra Singh, P.S. BH Rao
Respondent No. 2 (in-Person).

CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
ORDER

% 25.09.2025

1. The present petition filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 20231 (formerly Section 482 of the Code of Criminal Procedure, 19732) seeks quashing of FIR No. 12/2016, registered under Sections 498A/406/34 of the Indian Penal Code, 18603 at P.S. Bara Hindu Rao, and all other proceedings emanating therefrom.

2. Petitioner No. 1 is the husband of Respondent No. 2. Petitioners No. 2 and 3 are the in-laws of Respondent No. 2. The marriage between Petitioner No. 1 and Respondent No. 2 was solemnized on 2nd May, 2014 as per Muslim rites and ceremonies. Parties have no child from the said marriage. Due to matrimonial discord, the relationship between the parties deteriorated and they started living separately. Several efforts for reconciliation were "BNSS"

"Cr.P.C."

"IPC"

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3. Subsequently, Respondent No. 2 made a complaint against, inter alia, the Petitioners, alleging that she was subjected to cruelty by them, which later culminated into the impugned FIR. Upon conclusion of investigation, chargesheet was filed against the accused persons including the Petitioners. Vide order on charge dated 25th April, 2019, the Petitioners were charged for the aforenoted offences, while the other accused were discharged.

4. The present petition is premised on the fact that the parties have amicably resolved their disputes of their own volition, without any coercion, pressure, or undue influence. In furtherance thereof, a Settlement Deed dated 30th April, 2025 was executed before the Delhi Mediation Centre, Tis Hazari Courts, under which Petitioner No. 1 agreed to pay a sum of INR 5,00,000/- to Respondent No. 2, who, in turn, undertook to withdraw all proceedings pending before various fora. It is also noted that Petitioner No. 1 and Respondent No. 2 have already obtained a decree of divorce by mutual consent, vide order dated 21st September, 2019 passed by the Principal Judge, Family Court, Central District, Tis Hazari Courts, Delhi.

5. In view of the above settlement, counsel for the parties jointly pray for quashing of the impugned FIR. Respondent No. 2, who is present in Court and has been duly identified by the Investigating Officer, has confirmed that she has no objection to the quashing of the proceedings.

6. Counsel for the Petitioners further apprises the Court that an amount of INR 5,00,000/- is lying deposited with the Registrar General of this Court pursuant to order dated 20th September, 2016, passed in BAIL. APPLN. 1811/2016, while granting anticipatory bail to Petitioner No. 1. He submits that the said amount may now be released to Respondent No. 2, in terms of This is a digitally signed order.

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7. The Court has considered the afore-noted facts. Notably, the offence under Section 498A of IPC is non-compoundable while the offence under Section 406 of IPC is compoundable in certain cases.

8. It is well-established that the High Courts, in exercise of their powers under Section 528 of BNSS (formerly Section 482 of Cr.P.C.), can compound offences which are non-compoundable on the ground that there is a compromise between the accused and the complainant. In Narinder Singh & Ors. v. State of Punjab & Anr.,4 the Supreme Court laid down guidelines for High Courts while accepting settlement deeds between parties and quashing the proceedings. The relevant observations in the said decision read as under:

> "29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:

29.1. Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.

29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:

(i) ends of justice, or

(ii) to prevent abuse of the process of any court.

While exercising the power the High Court is to form an opinion on either (2014) 6 SCC 466 This is a digitally signed order.

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29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases."

[Emphasis Supplied]

9. Similarly, in the case of Parbatbhai Aahir & Ors. v. State of Gujarat & Anr.,5 the Supreme Court had observed as under:

> "16. The broad principles which emerge from the precedents on the subject, may be summarised in the following propositions:
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> 16.1. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice.

The provision does not confer new powers. It only recognises and preserves powers which inhere in the High Court.

16.2. The invocation of the jurisdiction of the High Court to quash a first information report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The (2017) 9 SCC 641 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/10/2025 at 22:33:16 power to quash under Section 482 is attracted even if the offence is non- compoundable.

16.3. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.

16.4. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised (i) to secure the ends of justice, or (ii) to prevent an abuse of the process of any court.

16.5. The decision as to whether a complaint or first information report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated.

16.6. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences.

16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing insofar as the exercise of the inherent power to quash is concerned.

16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute.

16.9. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and 16.10. There is yet an exception to the principle set out in propositions 16.8. and 16.9. above. Economic offences involving the financial and economic well-being of the State have implications which lie beyond the domain of a This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/10/2025 at 22:33:16 mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

[Emphasis Supplied]

10. As per the terms of the settlement, the Petitioners have agreed to pay a sum of INR 5,00,000/- along with applicable interest, which has already been deposited with this Court in accordance with order dated 20 th September, 2016. Accordingly, as jointly requested, the Registry is directed to release the amount lying deposited in the form of FDR, along with accrued interest, in favour of Respondent No. 2, as full and final settlement of the matter.

11. Considering the nature of dispute and the fact that the parties have amicably entered into a settlement, this Court is of the opinion that the present case is fit to exercise jurisdiction under Section 528 of BNSS as no purpose would be served by keeping the dispute alive and continuance of the proceedings would amount to abuse of the process of Court.

12. In view of the above, the petition is allowed, and FIR No. 12/2016, P.S. Bara Hindu Rao and all consequential proceedings arising therefrom are hereby quashed.

13. The parties shall abide by the terms of settlement.

14. Disposed of along with pending applications.

15. The present petition is allowed in the aforesaid terms.

SANJEEV NARULA, J SEPTEMBER 25, 2025 as This is a digitally signed order.

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